

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 28, 2026
DEPARTMENT 30
JUDICIAL OFFICER: MARK SCHMUCK

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE TEMPORARY JUDGE

Counsel and parties are encouraged to appear remotely through Zoom videoconferencing, **unless otherwise ordered by the Court.** Department 30 is open for in person appearances.

Please note the following information for your reference:

Zoom videoconferencing for Department 30:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. **MSP16-00402 MATTER OF KEADING FAMILY TRUST**
9:00 AM HEARING IN RE: NOTICE OF HEARING ON CLAIM OF EXEMPTION (NATSUMON ON HERCULES
PROPERTY) FILED ON 03/30/2026 BY HILJA M KEADING

-- See Line # 21 –
This matter will be trailed to 10:30 a.m.

Need appearances

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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2A. MSP17-01343 ESTATE OF EULA V. AVERHART

9:00 AM HEARING IN RE: PETITION FOR APPROVAL OF PRELIMINARY ACCOUNTING FILED BY JOHN RILEY ON 8/27/24

Need:

1. Appearances
2. Proof of mailing with the right to accounting advisement under PrC § 10950 information as provided in PrC § 12201(b).

Notes:

1. Letters of Administration issued to brother of decedent, John Riley 1-26-2018.
2. Administrator's Verified Status Report on Sale of Real Property filed 12-2-2025.
3. Per 12-16-2025 minute order, court ordered a Petition for Final Distribution to be filed by 2-20-2026. None has been filed.

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2B. MSP17-01343 ESTATE OF EULA V. AVERHART

9:00 AM

HEARING ON PETITION IN RE: STATUS REPORT OF ADMINISTRATION AND REQUEST TO CONTINUE
ADMINISTRATION FILED ON 05/30/23 BY JOHN RILEY

Need:

1. Appearances
2. Proof of mailing with the right to accounting advisement under PrC § 10950
information as provided in PrC § 12201(b).
3. Proposed Order to include provision that further status report and/or petition for
distribution must be filed

Notes: Per 01/23/25 minute order, Petition for Final Distribution was to be filed on or
before 04/25/25. None has been filed.

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2C.

9:00 AM

MSP17-01343 ESTATE OF EULA V. AVERHART

HEARING IN RE: PETITION FOR ORDER CONFIRMING SALE OF REAL PROPERTY FILED BY JOHN RILEY
ON 09/03/2025

Need:

1. Appearances
2. Verified declaration by petitioner to clarify whether all heirs have consented to the transaction. PrC § 10501(c)(1)
3. Verified declaration by petitioner to clarify whether atty. Jacqueline Colter-Peebles who requested special notice has consented to the transaction. PrC § 10501(c)(3)
4. Verified declaration by petitioner to clarify whether Creditor's Claims have been paid, settled, or withdrawn, or the creditors have consented to the transaction. PrC § 10501(c)(4)
5. Bond in the amount determined (plus overbid, if any) before order can be signed.
6. Reappraisal of realty for sale. PrC§ 10309
7. Counsel to appear. CRC § 7.452.

Notes:

- A. Real property is located at 518 S. 18th Street, Richmond, CA
- B. Sale price is \$300,000.00.
- C. Overbid price is \$315,500.00.
- D. Personal representative is listed as purchaser. See ¶ 10501 et seq.
- E. Real property was sold to petitioner 6-23-2025.

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5. MSP21-01172 ESTATE OF PAUL F CROVO

9:00 AM

HEARING IN RE: SECOND AND FINAL ACCOUNT FILED BY JANICE KITTREDGE ON 08/06/2025

Note: Order filed 1-16-2026.

Drop.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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6. **P24-00294** **ESTATE OF: PEDRO DONDA**
9:00 AM HEARING IN RE: PETITION FOR DETERMINATION OF ENTITLEMENT TO ESTATE DISTRIBUTION FILED BY
GUSTAVO DONDA ON 07/31/2025

Need:

1. Appearances to report status
2. Proposed Order

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7. 9:00 AM	P24-01277 HEARING IN RE: TO INVALIDATE TRUST FILED BY SIENNA DUNN ON 7/25/26 <u>07/25/2024</u>	MATTER OF: THE JOHNSON REVOCABLE TRUST <u>Drop.</u> Calendared in Dept. 30 in error. Note: This matter will be heard in Dept. 38.
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SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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8A. **P25-01329** **MATTER OF: THE SUEZAKI TRUST, DATED OCTOBER 19, 1988**
9:00 AM HEARING IN RE: PETITION FOR ORDER RETURNING ASSETS TO TRUST, ELDER ABUSE, FOR
CONSTRUCTIVE TRUST FILED ON 12-16-25 BY BRUCE I SUEZAKI

Need appearances

Notes:

1. Notice of Motion and Motion for Judgment on the Pleadings filed by Bruce Isao Suezaki and Robert Ito Suezaki 1-30-2026, is set for hearing 6-9-2026.
2. Amended Petition for: (1) Elder Abuse, (2) Conversion, (3) Fraud, (4) Order Returning Assets to Trust, and (5) For Construction Trust filed by Bruce I. Suezaki 4-3-2026, is set for hearing 8-4-2026.

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8B. 9:00 AM	P25-01329 MATTER OF: THE SUEZAKI TRUST, DATED OCTOBER 19, 1988 HEARING ON PETITION IN RE: TO INVALIDATE THE THIRD AMENDMENT TO THE SUEZAKI TRUST FILED ON 07/30/25 BY JOHN YONEO SUEZAKI Need: 1. Appearances 2. Proposed Order Notes: a. Response and Objection filed by Bruce Suezaki 12-9-2025. b. Confidential documents are attached to petition. Court will order them marked confidential. c. Objection filed by Bruce Isao Suezaki and Robert Ito Suezaki 01/08/26. d. Amended Petition to Invalidate the Third Amendment filed by John Suezaki as attorney-in-fact for Sally Suezaki 4-1-2026, is set for hearing 7-30-2026.
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10. 9:00 AM	P25-01491 ESTATE OF: MICHAEL DILIBERTO HEARING IN RE: PETIITON FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 08/22/25 BY BRADLEY BROWN Need appearances	-- See also Line # 11 --
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11A.

9:00 AM

P25-01492

ESTATE OF: HELEN DILIBERTO

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED BY JAMES-JOSEPH A
DILIBERTO ON 01/09/2026

-- See also Line # 10 --

Petitioner, son, still must do the following:

1. Appear at the hearing
2. Date the petition. Verification is not dated.
3. File Proof of Publication. PrC § 8120
4. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
5. File a verified declaration to address Item # 3.f. (whether decedent died testate or intestate)
6. File a verified declaration to address Item # 3.h. (whether you are a resident of California and resident of United States)
7. File a verified declaration by petitioner to address petition Item # 5.a.(7) or 5.a.(8) (whether decedent is survived by issue of a predeceased child)
8. Submit Order for Probate Form DE-140

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11B. P25-01492 ESTATE OF: HELEN DILIBERTO

9:00 AM HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 08/22/25 BY
BRADLEY BROWN

Need appearances to report status

Notes:

- a. If granted, bond will be fixed at \$334,000.00.
- b. Objection filed by James-Joseph A. Diliberto 09/23/25.
- c. Per 11-19-2025, James-Joseph Diliberto appeared in objection, and court ordered competing petition to be filed by 1-10-2026.

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13.

9:00 AM

P25-01647

MATTER OF: KAY YAMAGATA 2009 LIVING TRUST

HEARING IN RE: PETITION TO INVALIDATE FIRST AMENDMENT AND RESTATEMENT OF THE KAY YAMAGATA 2009 LIVING TRUST FILED ON 09/16/25 BY UNIVERSITY OF CALIFORNIA SAN FRANCISCO FOUNDATION - POSSIBLE ORDER TO BRESLIN MEDIATION

Need:

1. Appearances
2. Proposed Order

Notes:

1. Objection filed by Glenn Yamagata 01/16/26.
2. Respondent Vivian Yamagata's Response, Opposition and Objection filed 1-16-2026.

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14.	P25-02235	MATTER OF: THE DIDERO FAMILY TRUST, DATED SEPTEMBER 7, 1989, AS AMENDED AND RESTATED
9:00 AM	HEARING IN RE: PETITION FOR JUDICIAL CONSTRUCTION OF THE DIDERO FAMILY TRUST FILED ON 12/12/25 BY MARK J. DIDERO	
	Need: 1. Appearances 2. Proposed Order	
	Note: Objection and Response filed by Linda A. Roberts 3-27-2026.	

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15. **P25-02246** **MATTER OF: THE GAIL M. KESSLER LIVING TRUST DATED 04/13/2021**
9:00 AM HEARING IN RE: PETITION FOR ORDER CONFIRMING THE LEGAL STATUS OF TRUST PROPERTY FILED
ON 12/15/25 BY IAN FRATAR

Petition Approved
Proposed Order Submitted
No Appearance Required

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16A. **P25-02249** **MATTER OF: DURRELL MACKEY LIVING TRUST U/D/T DATED AUGUST 27, 2021**
9:00 AM HEARING IN RE: PETITION FOR ORDER COMPELLING GARY MACKEY AS TRUSTEE OR AS TRUSTEE DE
SON TORT; PROVIDE COPY OF TERMS OF TRUSY; FEES AND COSTS FILED PM 12/15/25 BY SHERLOCK
MACKEY

Petitioner, spouse, still must do the following:

1. Appear at the hearing
2. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
3. Submit a proposed Order

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16B.

9:00 AM

P25-02249

MATTER OF: DURRELL MACKEY LIVING TRUST U/D/T DATED AUGUST 27, 2021

HEARING IN RE: PETITION TO DETERMINE SHERLOCK MACKEY IS AN OMITTED SPOUSE ENTITLED TO AN INTESTATE SHARE OF TRUST FILED ON 12/15/25 BY SHERLOCK MACKEY

Petitioner, spouse, still must do the following:

1. Appear at the hearing
2. File verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice, including trust beneficiaries. LR 7.112
3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
4. Submit a proposed Order

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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| 18. | P25-02257 | MATTER OF: THE REVOCABLE TRUST DECLARATION OF STANLEY C. WILLIAMS
DATED FEBRUARY 28, 2000; RESTATED SEPTEMBER 3, 2015 AND AMENDMENTS
IN 2016 AND 2017 |
| 9:00 AM | HEARING IN RE: PETITION TO INVALIDATE PURPORTED TRUST AMENDMENTS FILED ON 12/22/25 BY
LISA WILLIAMS | |
| Petitioner, daughter, still must do the following: | | |
| <ol style="list-style-type: none">1. Appear at the hearing2. File a verified declaration by petitioner to state current addresses and relationships of all persons entitled to receive notice. LR 7.1123. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 172034. Submit a proposed Order | | |

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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19. **P26-00013** **ESTATE OF: CARLOS BRIZUELA-RODAS**
9:00 AM HEARING IN RE: SPOUSAL PROPERTY PETITION FILED ON 01/05/26 BY NORA TRINIDAD NAVAS CASCO

Need:

1. Proof of mailing to Luis Brizuela Navas at address in Supplemental Decl. filed 4-3-2026, or waiver of notice. Proof of Service attached to Notice filed 1-21-2026 reflects mailing to him at an address other than that listed.
2. Verified declaration by petitioner to include Attachment 7.b., not attached as indicated, and not attached to Suppl. Decl. filed 1-21-2026
3. Spousal or Domestic Partner Property Order Form DE-226

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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20. 9:31 AM	P24-01503 ESTATE OF: CONSTANCE KARNES HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 02/05/26 BY ALLEN E. KARNES Need: Order for Probate Form DE-140
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SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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21A. **MSP16-00402 MATTER OF KEADING FAMILY TRUST**
10:30 AM HEARING IN RE: NOTICE OF HEARING ON CLAIM OF EXEMPTION (NATSUMON ON HERCULES
PROPERTY) FILED ON 03/30/2026 BY HILJA M KEADING

Need appearances

Note: Notice of Motion and Motion to Vacate Judgment After Trial filed by Kenton Keading 4-1-2026, is set for hearing 8-4-2026.

21B. **MSP16-00402 MATTER OF KEADING FAMILY TRUST**
10:30 AM HEARING IN RE: NOTICE OF HEARING ON CLAIM OF EXEMPTION FILED BY HILJA KEADING ON 3-11-26

Need appearances

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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21C. 10:30 AM	MSP16-00402 MATTER OF KEADING FAMILY TRUST HEARING IN RE: NOTICE OF HEARING ON CLAIM OF EXEMPTION FILED BY HILJA KEADING ON 3-23-26 Need appearances
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21D. 10:30 AM	MSP16-00402 MATTER OF KEADING FAMILY TRUST HEARING IN RE: NOTICE OF HEARING ON CLAIM OF EXEMPTION FILED BY HILJA KEADING ON 3-23-26 Need appearances
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SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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25. 9:05 AM	P26-00037 ESTATE OF: KATHLEEN MCCARTHY HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 01/09/2026 BY TIMOTHY J. MCCARTHY Need appearances
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